

Vinay Kumar And 2 Others vs State Of U.P. And 2 Others on 10 August, 2010

Author: S.N.H. Zaidi

Bench: S.N.H. Zaidi

Court No. - 18

Case :- U/S 482/378/407 No. - 3134 of 2010

Petitioner :- Vinay Kumar And 2 Others

Respondent :- State Of U.P. And 2 Others

Petitioner Counsel :- Mahfooz Alam, B.L. Neeraj

Respondent Counsel :- Govt. Advocate

Hon'ble S.N.H. Zaidi, J.

Heard learned counsel for the petitioners and the learned A.G.A. for opposite party nos. 1 and 2 and perused the record.

Issue notice to opposite party no. 3 returnable at an early date.

Counter affidavit may be filed within four weeks. Rejoinder affidavit, if any, may be filed within two weeks thereafter.

List after expiry of the aforesaid period.

The submission of the learned counsel for the petitioners is that no offence is disclosed from the facts and circumstances of the case against the petitioners as petitioner no. 1 had married with opposite party no. 3 and after the marriage he started living with his wife at her maternal home. It is also submitted that opposite party no. 2 had gone with someone on 25.4.2009 without informing anybody in her house and in respect thereof, petitioner no. 1 gave written application (annexure no. 3) to the concerned P.S. on 27.4.2009 and also sent applications with registered post on 4.5.2009. She was, however, found after four days by her father and thereafter a divorce petition by mutual consent, under section 13-B of the Hindu Marriage Act, (Case No. 297 of 2009) was filed on 13.5.2009 before the Civil Judge (Junior Division) Unnao, (annexure no. 4) but opposite party no. 3 filed a complaint case on 16.6.2009 against petitioner no. 1 and his parents and other family members with mala fide intention and to harass them under sections 498-A, 323 and 506 I.P.C. and 3/4 D.P. Act.

Till the next date of listing, further proceedings in Complaint Case No. 4614 of 2009, Smt. Radha vs. Vinay Kumar & others, pending in the Court of Chief Judicial Magistrate, Unnao, shall remain stayed.

Order Date :- 10.8.2010 Rizvi